

APPENDIX XI

[Rule 40 (3)]

LEASE DEED

(Applicable to Government owned Sites in the Delhi State revised terms)

THIS LEASE made this 16th day of Dec of the year One thousand nine hundred and sixty Eight between the President of India (hereinafter called the Lessor which expression shall, unless the context requires another and different meaning, include his successors and assigns) of the one part and Lakshmi Chand s/o Har Lal of 67/27, Rajpat Nagar, New Delhi hereinafter called the Lessee which expression shall, unless the context requires another different meaning to mean and include the said Lakshmi Chand his heirs, executors, administrators, representatives and permitted assigns) of the other part.

WHEREAS the Lessor has agreed to demise to the Lessee the land described in the Schedule hereunder written upon the terms and conditions hereinafter appearing and contained Eight hundred and

NOW, this Indenture Witnesseth that in consideration of the premium of Rs. 1800/- paid before the execution of these presents the receipt whereof the Lessor hereby acknowledges and the rent hereinafter reserved and of the covenants by the Lessee hereinafter contained the Lessor doth demise unto the Lessee all that piece of land containing by admeasurement 100 sq. yds. or thereabouts situated in Plot No. 67/27 in Rajpat Nagar, New Delhi which said plot of land is more particularly described in the Schedule hereunder written and with the boundaries thereof has for greater clearness been delineated on the plan annexed to these presents and thereon coloured red, together with all rights easements and appurtenances to the same belonging save and except all mines and mineral products, buried treasure, coal, petroleum, oil and quarries whatsoever in/under or within the said land with liberty for the Lessor and his lessees, licencees, agents and workmen and all other persons acting on his behalf to dig, search for, obtain and carry away the same on making reasonable compensation to the Lessee on account of any disturbance or damage that may be caused thereby to the surface of the said land or any building standing thereon and that such compensation shall in case of dispute be determined by an officer appointed by the Lessor for this purpose, as nearly as may be, in accordance with the provisions of the Land Acquisition Acts or Regulations for the time being in force, whose decision thereon shall be final.

TO HOLD THE said land unto the Lessee for the term of 99 (Ninety-nine) years commencing from 1/11/53 yielding and paying therefor the yearly ground rent of Rs. 1/- at the rate of Re. 1 per annum per hundred square yards or fraction thereof at the Imperial Bank of India, New Delhi or at such other place as may be notified by the Lessor for this purpose from time to time.

(a) Rent will not be subject to revision except as provided for in (d) hereof.

(b) The Lessee shall before any assignment or transfer of the said premises hereby demised or any part thereof obtain from the Lessor approval in writing of the said assignment or transfer and all such assignees and transferees and the heirs of the Lessee shall be bound by all the covenants and conditions herein contained and be answerable in all respects therefor.

(c) The Lessee can transfer the land after obtaining the permission of the Lessor aforesaid and the Lessor will not share any unearned increment in the value of the land (being the difference in the premium paid by him to the Lessor and the market value of the land then prevailing) for permitting such transfer. The Lessor will, however, be entitled to claim and recover the unearned increment in the value of land in the event of any subsequent transfer of the land by a transferee the amount so to be recovered being 50% of the unearned increment in the value of the land.

In the case of any subsequent transfer the Lessor shall have the pre-emptive right to purchase the premises as hereby demised and all the buildings and structures standing thereon, after deducting 50% of the unearned increment as aforesaid.

Lakshmi Chand

(d) The Lessor shall also have the right to revise the annual ground rent at the time of any assignment or transfer of the premises hereby demised subsequent to the first transfer or assignment as aforesaid. The revised ground rent payable in such case shall be at the rate of 2½ per cent of the value of the land at the time of such transfer.

Provided further that in the case of any transfer or assignment subsequent to the first transfer or assignment the Lessor shall also have the right to revise the ground rent hereby reserved on the first day of January of the year following the year in which thirty years from the date of such subsequent transfer or assignment shall be complete and thereafter at the end of each successive period of not less than thirty years; provided that the increase in the rent fixed at each enhancement shall not at each such time exceed one half of the increase in the letting value of the site without buildings at the date on which the enhancement is made and such letting value shall be assessed by the Collector or Deputy Commissioner of Delhi: PROVIDED always that any such assessment of letting value for the purpose of this provision shall be subject to the same right on the part of the Lessee of appeal from the orders of the said Collector or Deputy Commissioner and within such time as if the same were an assessment by a Revenue Officer within the meaning of section 50 of the Punjab Land Revenue Act, 1887 (Act XVII of 1887) and the proceedings for or in relation to any such appeal shall be in all respect governed by the provisions of the said Act in the same manner as if the same had been taken thereunder.

(e) The ground rent will be payable in advance in half yearly instalments on the 15th January and 15th July each year. The ground rent shall be payable for the full half year for the period from the date of purchase of the grant of a lease of the site on the 15th January or 15th July next following as the case may be and shall be paid by the purchaser at once at the time of such purchase.

1. The Lessee doth to the intent that the burden of the covenants may run with the said land and may bind any permitted assignee thereof hereby covenant with the Lessor as follows:—

- (i) to pay the rent on the days and in the manner herein before appointed for payment thereof and also to pay all taxes, rates and assessments that now are or may hereafter during the said term be imposed upon the said land or buildings erected thereon or upon the Lessor or the Lessee, his permitted sub-lessee or assignee in respect thereof, under any enactment for the time being in force;
- (ii) within the period of 24 calendar months next after the date of these presents the from the day of 196 Lessee shall and will at his own expense erect and finish fit for habitation on the site hereby demised one building *single storeyed containing one residential flat or *double storeyed consisting of one or two residential flats in all with a barsati on top, as may be approved by the Chief Commissioner, Delhi or such officer or body as the Lessor or the Chief Commissioner, Delhi, may authorise in this behalf together with all necessary outhouses, sewers, drains and other appurtenances in accordance with a plan or plans to be approved of in writing by the Chief Commissioner, Delhi or such officer or body as the Lessor or the Chief Commissioner, Delhi may authorise in this behalf. And all the drains and sewers for the said premises shall be constructed, laid and connected to the satisfaction of the Chief Commissioner and the appropriate Municipal authority and in such position as shall be directed by the said Chief Commissioner or as may be required by the said Municipal authority;
- (iii) before the buildings on the said site are occupied connect the same with the gravitating sewers and to lay on water to the said buildings in the manner directed by an officer appointed, by the Lessor in this behalf and to employ a plumber duly approved by the said officer to make and do all such connections and works; provided that when the sewage or water systems are not extended to the said house/quarter at the time the said buildings are occupied, the Lessee shall, within 30 days from the extension of the sewage and water systems to the said house/quarter, connect gravitating sewers and lay on water in the manner and according to the instructions and through the agency above mentioned;

- (iv) to maintain the premises and all buildings thereon in sanitary condition according to the directions of the officer appointed by the Lessor.
- (v) not to erect more than one building *single storeyed containing one residential flat or *double storeyed consisting of one or two residential flats in all, with a barsati on top, as may be approved by the Chief Commissioner, Delhi or such officer or body as the Lessor or the Chief Commissioner, Delhi may authorise in this behalf, except such outhouses and servant quarters as may be approved by the Lessor. Any servant quarter constructed by the Lessee shall not without any written permission of the Chief Commissioner, Delhi, be occupied or permitted to be occupied otherwise than by the bona-fide servants of the persons occupying the main building;
- (vi) not without the written consent of the Chief Commissioner, Delhi, to carry on or permit to be carried on, on the said land and buildings erected thereon during the said lease any trade or business whatsoever or use the same or permit the same to be used for any purpose other than that of a *single storeyed building consisting of one residential flat or a *double storeyed building consisting of one or two residential flats in all, with a barsati on top, as may be approved for the locality or as provided in the building already erected on the said land;
- (vii) not to sub-divide the said land or building erected thereon or any part thereof without the prior permission of the Lessor in writing;
- (viii) not to do or permit anything in or upon the demised premises or any part thereof which may be or become a nuisance, annoyance or cause damage to occupiers of other property in the neighbourhood;
- (ix) to register all changes in the possession of the whole of the said land or of the building erected thereon whether by transfer, succession or otherwise in the register kept in the office of the local authority having jurisdiction in the area in which the said land is situated (the expression local authority shall include the Delhi Improvement Trust) for this purpose within one calendar month from the respective dates of such changes (and if such changes are registered in the local sub-registry under the Indian Registration Act, 1908, within one calendar month from the date of registration in such sub-registry) and if the Lessee shall without sufficient cause neglect to register such changes in the manner aforesaid with the Lands Officer appointed by the local authority for this purpose, the Lessor may impose on him for each such case of neglect a penalty not exceeding Rs. 100 and the Lessor may in addition to the other remedies available to him under these presents enforce the payment of such penalties in the same manner as in the case of arrears of land revenue;
- (x) that all persons acting under the orders of Lessor shall be at liberty at all reasonable time in the day time during the said term to enter upon the said land or any building that may be erected thereon for any purpose connected with the lease;
- (xi) the lessee and his successors and assignees shall on the determination of the lease on the expiry of the period of 99 years yield up the demised premises with all buildings erected thereon and landlord's fixtures thereto, provided that the Lessor shall pay to the Lessee the value of the said buildings and fixtures at the date of determination of the tenancy, such value to be determined in the absence of agreement, by a sole arbitrator agreed upon by both the parties or in the absence of such agreement by two arbitrators, one to be appointed by each party. The provisions of the Arbitration Act, 1940, and any statutory modification thereof shall apply to any such arbitration. The Lessor may however renew the lease of the land after the expiry of 99 years on such terms and conditions as considered necessary by the Lessor;
- (xii) if during the period of the lease the premises are required for a public purpose or for any administrative purpose by the Lessor the Lessor shall at the expiry of a notice of fifteen days to the effect that the said premises are required for such purpose to be served upon the Lessee by an officer appointed by the Lessor in this behalf,

*Score out which is not applicable.

Lal Kishan Chaudhary

be at liberty to take possession of the land together with all buildings, structures and appurtenances. The Lessee shall be entitled to compensation in respect of the land, buildings and structures. The compensation payable under this clause shall, in case of dispute, be determined by the Lessor or by such officer as he may appoint for the purpose, as nearly as may be, in accordance with the provisions of the Land Acquisition Act or regulation for the time being in force relating to the same and the decision of the Lessor or such officer shall be final and conclusive ;

- (xiii) Any sum of money due to or claimable by the Lessor in respect of the land hereby demised shall be recoverable by the Lessor as an arrear of land revenue under the provisions of the Punjab Land Revenue Act, 1887 (XVII of 1887) and any amending Act for the time being in force.

II. If the yearly rent hereby reserved or any part thereof shall at any time be in arrear and unpaid for one calendar month next after any of the said days whereon the same shall have become due, whether the same shall have been demanded or not, or if there shall have been in the opinion of the Lessor or the Chief Commissioner of Delhi whose decision shall be final, any breach by the Lessee or by any person claiming through or under him of any of the covenants or conditions herein before contained and on his part to be observed or performed then and in any such case it shall be lawful for the Lessor or any person or persons duly authorised by him not withstanding the waiver of any previous cause or right of re-entry upon any part of the premises hereby demised or of the building thereon in the name of the whole to re-enter and thereupon this demise and everything herein contained shall cease and determine and the Lessee shall not be entitled to any compensation whatsoever, nor to the return of any premium paid by him.

III. No forfeiture or re-entry shall be effected except as herein provided, without the permission of the Chief Commissioner of Delhi and Chief Commissioner shall not permit such forfeiture or re-entry until the Lessor has served on the Lessee a notice in writing—

(a) Specifying the particular breach complained of ;

(b) If the breach is capable of remedy, requiring the Lessee to remedy the breach, and the Lessee fails within a reasonable time from the date of service of the notice to remedy the breach, if it is capable of remedy; and in the event of forfeiture or re-entry the Chief Commissioner may in his discretion relieve against forfeiture on such terms and conditions as he thinks proper.

Nothing in this clause shall apply to entry for breach of covenant against unauthorised sub-division.

In WITNESS WHEREOF the President of India has caused. *Munagur* on his behalf to set his hand hereunto and the Lessee has hereunto set his hand the day and the year first above written.

The schedule above referred to.

Signed by
for and on behalf of President of India in the presence of

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Signed by *Lakhmi Chandra*
the Lessee in the presence of

1. *Balram Chandra M. 31. K. Kaji New Delhi 19*
2. *Tola Ram 4.5/A. Kotla Laxo Shah. New Delhi 1.*

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Submitted by SA 1471 Lakhmi Chandra
 SA No. 85 H. V. ...
 To: I.G. / ... Rajgarh, N. Delhi
 In the office of the Sub Registrar ...
 the 6th Feb 1969 ...
 Lakhmi Chandra

Lakhmi Chandra

Lakhmi Chandra
 Sub Registrar
 6.2.69
 New Delhi

Lakhmi Chandra
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 New Delhi.

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 6.2.69

Sub-Dist. No. 111
 NEW DELHI

Lakhmi Chandra

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APPENDIX XXV

DEED OF CONVEYANCE OF BUILDING CONSTRUCTED ON LEASE-HOLD SITES SOLD OTHERWISE THAN PUBLICATION.

[(Rule 91(8))]

(Government built and evacuee properties in the Delhi State built on leasehold sites)

THIS INDENTURE made the 16th day of Dec, 1968, between the President of India (hereinafter called "the Vendor") on the one part and G. T. 27, Ghat Road, N. Delhi (hereinafter called "the Purchaser") on the other part.

WHEREAS the site and the building hereinafter described is owned by the vendor in full proprietary right.

AND WHEREAS the purchaser has declared that he is a displaced person*;

AND WHEREAS the purchaser has taken on lease the said site by lease deed dated 16-12-68

AND WHEREAS the vendor has agreed to sell and the purchaser has agreed to buy the building fully described in Schedule I hereunder written (hereinafter referred to as the said property) at or for the price of Rs. 1500-00

AND WHEREAS section 8 of the Displaced Persons (Compensation and Rehabilitation) Act, 1954 (hereinafter referred to as the "Said Act") provides that a displaced person shall be paid out of the compensation pool the amount of net compensation determined under sub-section(3) of section 7 of the Said Act as being payable to him and subject to the rules that may be made under the said Act, the Settlement Commissioner or any other officer or authority authorised by the Chief Settlement Commissioner in this behalf may make such payment in any one of the forms mentioned therein or partly in one and partly in any other of such forms;

AND WHEREAS the purchaser has paid cost the sum of Rs. 1500-00 being the purchase money/on or before the execution of these presents (the receipt whereof the vendor doth hereby admit and acknowledge and from the same doth hereby release the Purchaser)/*out of which the sum of Rs. 1500-00 has been paid in cash and the balance of Rs. 1500-00 by adjustment against the compensation payable under the said Act to the purchaser and his associates whose names are given in Schedule II hereunder written and which said associates have agreed to the said property being granted, released conveyed and assured unto the Purchaser*.

NOW this indenture witnesseth that for the purpose of carrying into effect the said sale and in consideration of the covenants of the purchaser hereinafter contained and the payment by the purchaser of the said sum of Rs. 1500-00 in the manner aforesaid the vendor doth hereby grant, convey, release and assure unto the purchaser the building described in Schedule I hereunder written.

TO HAVE AND TO HOLD THE same unto and to the use of the purchaser subject to the exceptions reservations, conditions and covenants hereinafter contained and each of them that is to say:—

- (1) The purchaser shall enjoy the right of possession and enjoyment so long as he confirms to the terms and conditions of the sale.
- (2) The purchaser shall pay all general and local taxes, rates and cesses now imposed or assessed or which may at any time hereafter be imposed or assessed on the said property by the vendor or by any other competent authority.
- (3) The purchaser shall not make any alterations and/or additions to the building either externally or internally without first obtaining the permission of the local authority in writing, and also if called upon by the said authority, the purchaser shall submit plans, sections, elevations and specifications for the additions and/or alterations to the building, in duplicate, and shall not start the work of constructions unless and until the approval of the said authority has been obtained in writing.
- (4) The purchaser shall maintain the said property in a sanitary conditions according to the directions of the local authority concerned.

*To be omitted if the purchaser is a non-displaced person.

*Appendix XI, XII or XIII as the case may be in the case of Government built properties. In the case of evacuee properties terms of the original lease will apply.

- (5) The purchaser shall not use the said property for any purpose other than the purpose of *residence* without the previous consent in writing of the vendor or an officer appointed by him in this behalf.
- (6) The vendor may by his officers and servants at all reasonable times and in a reasonable manner after 24 hours' notice in writing enter in and upon any part of the said property for the purpose of ascertaining that the purchaser has duly performed and observed the covenants and conditions to be performed and observed by him under these presents.
- (7) The vendor shall have full right, power and authority at all times to do, through officers, or servants all acts and things which may be necessary or expedient for the purpose of enforcing compliance with all or any of the terms, conditions and reservations herein contained and to recover from the purchaser as a first charge upon the said property the cost of doing all or any such acts and things and all costs incurred in connection therewith or in any way relating thereto.
- (8) In the event of the breach or non-observance by the purchaser of any of the covenants herein on his part to be observed then in any such case notwithstanding the waiver of any previous cause or right for re-entry, it shall be lawful for the vendor to enter into and upon the said property or any part thereof and to re-possess, retain and enjoy the same as of his former estate and the purchaser shall not be entitled to a refund of the purchase money or any part thereof or to any compensation whatsoever on account of such resumption.
- (9) If and so long as the purchaser shall fully perform and comply with and shall continue to so perform and comply with each and all the terms and conditions herein made and provided but not otherwise the vendor will secure the purchaser full and peaceful enjoyment of the rights and privileges herein and hereby conveyed and assured.
- (10) It is hereby agreed and declared that this conveyance shall in all respects be subject to the terms and covenants contained in the lease* deed of the site hereinbefore referred to.
- (11) In the event of any dispute of difference at any time arising between the vendor and the purchaser as to the true intent and meaning of these presents and of each and every provision thereof, the property and rights hereby reserved or any of them or in any manner incidental or relating thereto the said dispute or difference shall be referred to the Chief Commissioner, Delhi, or his nominees whose decision thereon shall be final and binding on the parties hereto.

If either party shall neglect or refuse for the space of thirty days after request in writing by the other party so to refer the matter, than the other party may himself refer the matter for the decision of Chief Commissioner, Delhi, as aforesaid who may proceed as though the reference were by both parties and his decision thereon shall be final and binding on both parties.

And it is hereby agreed and declared that unless different meaning shall appear from the context.

(a) the expression "Vendor" used in these presents shall include the President of India, the Government of India, the Chief Commissioner, Delhi, and in relation to any matter or anything contained in or arising out of these presents, every person duly authorised to act or to represent the Government of India in respect of such matter or thing;

(b) the expression "purchaser" used in these presents shall include, in addition to the said *S. Lalbhai Chand* his lawful heirs, successors, representatives, assigns, transferees, lessees and any person or persons in occupation of the said property.

IN WITNESS WHEREOF the parties hereto have hereto set their hands the day and year first above written:—

SCHEDULE I ABOVE REFERRED TO

ALL THAT *single* *storeyed* brick-built house or messuage consisting of *one room* at *14, Pat. Nagar* with fixtures and fittings situate the site being held on lease by an indenture of lease dated *10/12/68* and more particularly described in the Schedule thereunder written TOGETHER WITH all buildings, privileges, easements and appurtenances whatsoever to the said house or messuage belonging or usually held or enjoyed therewith. OR HOWSOEVER OTHERWISE the said house or messuage is or heretofore was called or known or should be described or distinguished.

*To be omitted if the purchaser is a non-displaced person.

S. Lalbhai Chand

*SCHEDULE II

Signed by the.....

for and on behalf of the President of India.

In the presence of—

Signature

Occupation

Address

Signature

Occupation

Address

Signed by the said L. Lakshminchandra

at New Delhi

In the presence of

Signature P. Ramamurthy

Occupation Govt. Service

Address M-31, Kalkaji New Delhi 19

Signature T. D. Ram

Occupation Govt. Service

Address 46/A, Kottla Faraz Shah, New Delhi 1.

*To be omitted if the purchaser is a non-displaced person.

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Presented by Mr. [unclear] Lakshmi Chari
S/o. W/o S. [unclear] [unclear]
R/o. [unclear] [unclear] [unclear] [unclear] [unclear]
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Expenditures of the document explained to the parties

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Office of R. S. C. & New Delhi

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imprints are deposited with the documents
and are intended to authenticate

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Lakshmi Chandley

SUB REGISTRAR
Sub-Dist. No. III
NEW DELHI

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